

POKER FLAT PROPERTY OWNERS ASSN v. HALTER, et al

22CV45853

DEFENDANT'S MOTION TO SET ASIDE DEFAULT JUDGMENT

This is a limited jurisdiction, civil collection action involving an alleged failure to pay HOA dues. Before the Court this day is a motion by one of the residents – defendant Chet Cummins – to set aside the entered default judgment. Defendant contends that the default judgment entered against him was void *ab initio* for want of personal jurisdiction (inadequate service of summons). No opposition to the motion appears in the court file, although it does appear that plaintiff and creditor-assignee were provided notice by mail of today's motion. Nevertheless, the absence of opposition does not immediately equate with a grant of the relief requested.

Initially, the Court notes moving defendant failed to comply with Local Rule 3.3.7's required notice mandated to be included in the notice of motion. Said local rule additionally provides that failure to include the notice specifically is a grounds for denying a motion. However, in the interests of justice in light of the ramifications of denying the present motion on purely procedural grounds, and the lack of opposition, the Court will address and rule on the merits of the motion.

Based on the proof of service and accompanying declaration of diligence, defendant was sub-served via an unnamed female "co-occupant" at 2204 Belsera Drive in Oakdale on 03/06/22 at 1:30 p.m. The declaration further reveals that the process server made two prior attempts to pass the *community* gate, "with no success." Both the request for entry of default, and the notice of entry of default judgment, were mail-served to defendant at the same Belsera address. Curiously, though, the memo of costs was mail-served to defendant at a *different* address, to wit: P.O. Box 12230 in Oakdale.

Defendant avers that the Belsera address is neither his primary dwelling, nor his usual place of business. He indicates residence at a different location in the City of Oakdale, and implies that the Belsera property is one of his rental/investment properties only. He further avers that the tenants never informed him of the legal papers received. Finally, defendant avers that he first learned about the lawsuit (and ensuing default judgment) after receiving the memo of costs at his P.O. Box (noted *supra*).

Defendant has more than adequately demonstrated that both the entry of default and the default judgment were void for want of proper service. (See *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134; *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750; *Giorgio v. Synergy Mgmt. Group, LLC* (2014) 231 Cal.App.4th 241, 248-249; *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 185.) Initially, plaintiff's process server was not entitled to

graduate to sub-service after making only one attempt to personally serve defendant at the Belsera residence. (CCP §415.20(b).) The fact that this was an unmanned gated community is of no consequence. (See CCP §415.21(b).) Additionally, the declaration fails to include any showing that the process server confirmed defendant's occupancy, or made any effort to confirm defendant's connection to the property. (See *Corcoran v. Arouh* (1994) 24 Cal.App.4th 310, 315; *Zirbes v. Stratton* (1986) 187 Cal.App.3d 1407, 1415-1417.) The process server made only one attempt to personally serve defendant after breaching the community gate, and immediately converted to sub-service on the alleged "co-occupant". Defendant owns two units within the community on Thompson Lane/Poker Flat Road, but no effort to serve him there occurred – even though this is the address used by plaintiff for service of required statements and deficiency notices (see Rushkin Decl with exhibits, including CCR Art. VI(3)(d)).) Plaintiff apparently had a valid P.O. Box for defendant, and should have at minimum used that as well (even though that alone would not be sufficient – see CCP §415.20(a)).

Use of the wrong address for defendant until the time to seek post-judgment costs reveals two things: first, that plaintiff did not make a good faith attempt to convey actual notice to defendant of these proceedings; and, second, that neither the judgment entered, nor the original entry of default, can stand. The motion to set aside the default judgment is GRANTED. The entry of default is set aside. Defendant's proposed answer is accepted for filing. The writ of execution is hereby rescinded, as is the assignment of judgment.

A case management conference shall be set for April 5, 2023, at 1:30 p.m. in Department 4. The clerk is directed to give notice to the parties hereof. No further formal order shall be required.

HAMPTON v. EAST BAY MUNICIPAL UTILITY DISTRICT, et al

22CV46329

EBMUD'S DEMURRER TO FAC

This is a personal injury action. Plaintiff generally alleges that while recreating along the south shore of Lake Camanche, near the Arrowhead campground, he suffered serious life-altering injuries after diving into the water and striking a submerged boulder.

The operative pleading is the First Amended Complaint, filed 03/107/22. Before the Court this day is a demurrer by co-defendant East Bay Municipal Utility District (hereinafter "EBMUD") to both the first (general negligence) and second (premises liability) causes of action, as well as to the distinct count within the second cause of action for "dangerous condition of public property." The overarching theme of the demurrer is that the claims are not well-pled, and that statutory immunities prohibit plaintiff from maintaining a personal injury cause of action against this particular public-entity defendant for engaging in a hazardous recreational activity (diving into shallow water) and striking a natural condition (submerged boulder). Plaintiff contends that he has alleged enough facts to satisfy the pleading requirement, to fit into an exception to the referenced immunities, and further contends that should this Court find the pleading inadequate, plaintiff has additional facts.

Defense Request for Judicial Notice

Defendant asks this Court to take judicial notice of the two operative pleadings, as well as plaintiff's prior sworn declaration. Asking a court to take judicial notice *of a document* is asking the court to take judicial notice of its existence and – to the extent it is not subject to dispute – the significance or legal effect of its existence, if any. Taking judicial notice of a document does not equate with any determination regarding the truth of its contents or accepting a particular interpretation of its meaning. There are, however, two exceptions to this limiting rule: first, a trial court can take judicial notice of facts found true and set forth in court orders/judgments; and second, a trial court can take judicial notice of facts set forth in the pleader's prior sworn statements (declarations and discovery responses) if truly inconsistent, with no plead around. (See, e.g., *People v. Franklin* (2016) 63 Cal.4th 261, 280; *Hearn Pacific Corporation v. Second Generation Roofing Inc.* (2016) 247 Cal.App.4th 117, 129-131; *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 659-660; *Intengan v. BAC Home Loans Servicing LP* (2013) 214 Cal.App.4th 1047, 1057; *Williams v. Southern Calif. Gas Co.* (2009) 176 Cal.App.4th 591, 600; *Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.) Here, defendant has not asked this Court to take judicial notice of a fact set forth in plaintiff's prior